Pine Valley Local Administrative District

Meeting Minutes - PENDING

Pine Valley Fire Station, 680 East Main Street, Conference Room

November 12, 6:00 P.M.

Board Members: Frank Davie, Chairman
Tom Nielsen, Vice Chairman
Bob Dalley
Emily Neilson
Herman Nordbruch

PVLAD Assistants: Rick Peetz, Clerk
Teri Forbes, Treasurer

Others: Susie McArthur
Reed McArthur
Stephanie Hulet
Megan Ficken
Steve Shakespeare
Rob Nodine
Allen Cannon
Dan Forbes
John Robson
Roland Finger
David Finger
Darlene Finger
Brian Beckstrom
Britt Beckstrom
Joshua Forest
Brad Esposito
Robert Hardy
Mary Esther Putnam
Audrey Krohn
Duane Krohn
Kelly Hagemeyer
Dale Hagemeyer

1. Welcome, Prayer, and Pledge of Allegiance.

Chairman Frank Davie called the meeting to order at 6:00 p.m. Chair Davie offered the prayer. Tom Nielsen led the Pledge of Allegiance.

Dale Hegemeyer acknowledged the receipt of funds from the Special Service District and expressed his appreciation to the Board.

Kelly Hagemeyer appreciated the love and support received from the community. She was pleased to be rebuilding and considers Pine Valley her home. She expressed her thanks for the generous contribution.

John Robson thanked the Board for having received a donation toward his rebuilding efforts.

Bob Dalley acknowledged receipt of three thank-you letters from other homeowners who lost their homes in the Forsyth Fire. He reported that the funds came from the Special Service District.

Chair Davie reported that both Dale Hagemeyer and John Robson are members of the Pine Valley Fire Department and lost their homes.

2. Pine Valley Overlay Zone Business – Emily Neilson.

Emily Neilson reviewed the general information for all three applications after which individual votes were to be taken on each application. She explained that the Overlay Zone was passed a few years ago with the intent of preserving Pine Valley's sense of place. The existing County regulations were modified to help preserve the rural nature of Pine Valley. The County asks that applicants wishing to develop appear before this body first to ensure that everyone is on the same page and to prevent surprises down the road. A Fire Impact Fee will apply to those who were not victims of the Forsyth Fire and should be paid to the Clerk after the meeting. All paperwork will be forwarded on to the County the morning following the meeting. The intent was to make the process as easy as possible.

Emily commented on the size of the proposed home and the outbuildings and explained that the footprint of the home cannot be more than 50% of the lot. She encouraged the applicants to look at the Residential Standards Section where there are setbacks and accessory lot mandates and recommendations. Fencing can be six feet all the way around a property. Currently, Washington County allows four-foot fencing in front. The fencing material must be non-obscuring. Information was also provided regarding wildland fires. It was reported that the County recently passed more stringent requirements for fire pits.

Outdoor lighting was discussed. Emily reported that lights must be fully shielded. She noted that a few months ago, the County passed a more stringent requirement that is applicable to Pine Valley and includes restrictions on how many total lumens can be displayed with a limit of 3,000 lumens on exterior lighting. She noted that if the light bulb is visible, it is not compliant and needs to be covered.

A. Mark and Tondi Hobaica – Home Rebuild (Forsyth Fire) (joining by telephone).

The square footage of the lot is just over 14,000 square feet and the home is 3,000 square feet, which is compliant. A metal roof is proposed with lights that are fully shielded. When looking at outbuildings, Emily suggested they consider the allowable square footage. Because the Hobaicas were victims of the Forsyth Fire, the fees were waived in an effort to help them rebuild. They will not need to pay the Fire Impact Fee or next year's annual assessment.

Emily Neilson moved to recommend that the County APPROVE the Hobaica Building Permit. Herman Nordbruch seconded the motion. The motion passed with the unanimous consent of the Board.

Ms. Hobaica expressed appreciation to the Board for the check she received.

B. Ben and Stephanie Hulet – Building Request.

The Hulet request was next presented with the square footage of the lot being 13,000 and the home proposed at 48%. Because it is close to the 50% maximum Emily suggested that the Hulets verify the outbuildings and restrictions to avoid potential issues. She noted that the 50% requirement is intended to preserve low density, which was identified as important by the community.

Emily Neilson moved to recommend that the County APPROVE the Hulet Building Request. Bob Dalley seconded the motion. The motion passed with the unanimous consent of the Board.

C. Jake Farish – New Home Request for Gene Schumacher.

The above request was tabled.

D. Britt Beckstrom – Home Addition.

Chair Davie indicated that he has been in contact with the applicant, Britt Beckstrom, whose project was red flagged by the County for not having the approval of the Pine Valley Local Administrative Board (“LAD”). Chair Davie thanked Mr. Beckstrom and his family for their patience and understanding, recognizing that the Board has to follow certain guidelines. He noted that special meetings were held for fire victims of which the Beckstroms were not.

Emily reported that the square footage of the addition was changed to 669, which was noted. She noted, however, that even though it is an addition, if changes are made to the exterior, the Overlay Zone applies.

The history of the Beckstrom Family in the community was recognized with Mr. Beckstrom being the grandson of Effie Beckstrom.

Emily Neilson moved to recommend that the County APPROVE the Beckstrom Home Addition. Tom Nielsen seconded the motion. The motion passed with the unanimous consent of the Board.

3. Meeting Minutes.

A. Approval of October 8, 2025, PVLAD Meeting Minutes.

Herman Nordbruch moved to APPROVE the minutes of October 8, 2025. Bob Dalley seconded the motion. The motion passed with the unanimous consent of the Board.

4. Board Member Reports.

A. Pine Valley Activities – Frank Davie.

Chair Davie commented on the high-quality activities that take place in Pine Valley. The next will be the Christmas Tree Lighting and Nativity with the Relief Society Gratitude Dinner scheduled for Thursday, November 13 at 6:00 p.m. at Orton's Barn.

Tom Nielsen reported that the Historic Pine Valley Chapel is no longer being used for church services and no church meetings will take place there going forward. It will now be a historic site that is under the umbrella of the Stake President. Tom and his wife, Cathy, have been called to serve as Site Managers. They will work with Facilities Management and the History Department. There has been some pushback from a family who wanted to have a Thanksgiving Day Flag Football game on the lawn. The request was denied.

Tom reported that the key fobs no longer work. As information comes in, it will be disseminated on Nextdoor. The hours on the sign out front have also been blacked out. He asked that any unusual activity be reported to him.

B. Traffic Report – Tom Nielsen.

Tom Nielsen presented the Traffic Report and reported on the data obtained from the flashing speed signs in the Valley. Traveling westbound, the sign on 400 West Main Street recorded 8,200 cars in October 2024. This year there were 9,090 cars. The difference between last year and this year was 820 cars. Most of the cars were speeding.

The next sign is close to Sage Drive and in October 2024 there were 5,965 vehicles recorded. This year there were nearly 8,900 with most cars found to be speeding.

Over the summer the sheriff performed special patrols for three months over the major holidays. They slowed traffic down significantly and it was beneficial to have them in the Valley.

The sign near the Neilson home traveling eastbound recorded 9,800 cars in October 2024 with most speeding. The fastest speed recorded was 55 MPH.

The sign near the Brandin' Iron recorded 3,600 cars traveling westbound in October 2024. The highest speed recorded was 60 MPH. This year there were nearly 4,200 cars recorded with an increase of 500 cars.

C. Five County Report – Bob Dalley.

Bob had nothing new to report.

D. Washington County Crime & Sheriff's Report – Herman Nordbruch.

Herman Nordbruch reported on overall crime rates over the last month and stated that there was nothing abnormal about the numbers compared to the last 12 months. There were 96 bookings in the last five days with the County. The high was 218 in August. There have been 236 releases in the last 14 days from a high in August of 263. The current jail population is 388 from the high in September of 446. There were no significant events reported over the past month.

Herman publicly thanked the person who posted the pictures from the dump where someone was seen dumping an entire trailer of trash on the ground. The individual retrieved the license plate number, which was provided to Lieutenant Fuller at the Sheriff's Office. The next day he noticed that the trash had been removed.

Herman was pleased to report that in working with Lieutenant Fuller, they obtained an approved contract for the summer 2026 holiday weekends. It will include 12 days compared to 13 days this past year. The cost was $3,900 this year compared to $3,600 next year. Shifts will run from 10:00 AM to 3:00 PM. The five-hour shifts are based on an average peak traffic time based on data from the traffic cameras.

5. Motion to Close the Public Meeting and Open the Public Hearing.

Bob Dalley moved to CLOSE the Public Meeting and open the Public Hearing to discuss the budget. Herman Nordbruch seconded the motion. The motion passed with the unanimous consent of the Board.

6. PUBLIC HEARING – To Consider a Budget Amendment to Designate Existing Funding to be Used for Community Flood and Fire Mitigation. Please note: Each speaker will be allotted a maximum of two minutes to speak.

Bob referenced the policies and stated that a common problem for districts is the accumulation of large fund balances or cash reserves. Large fund balances are inappropriate for government units and are generally in violation of State laws. Reference was made to Utah Code, which limits the amount that can be retained as Unreserved Fund Balance in the General Fund. The accumulation of the Fund Balance may not exceed 100% of the current year property tax/assessment, which is $180,000 for the Fire Department. The most common criteria will be 100% of the current year's assessment. There are provisions in the law that allow the governing board to accumulate funds for the purpose of financing future capital projects. Generally, accumulation of these should be reported in a Capital Projects Fund.

Rick reported that currently $20,500 is available with the expected income to be around $10,600 from the assessments. Next year's proposed expenses are $16,400. He did not expect to have an issue by not billing this year.

Emily suggested that the Board decide what to do this year to ensure that they are within the threshold and perhaps carry that amount over to next year if there are flood or fire mitigation needs that the funds could be used for. Rick stated that the 2026 budget is tentative and can be changed as the Board sees fit.

Rick explained that the cash balance at the end of 2025 will be $20,500. Bob noted that the allocation of the fire assessment allocated to the Board is approximately $10,000. As a result, they need to tag funds for flood mitigation of up to $10,000 or risk being in violation and would not need to assess in 2026. Rick reported that if they do not assess, they will not be in violation. If, however, the decision is made to assess, they will need to allocate funds for mitigation. Bob suggested that the Board consider whether to set aside $10,000 or more for potential flood mitigation work that the community would help pay for in addition to what the County and the Federal Government are doing.

Bob Dalley moved to OPEN the Public Hearing to consider the budget amendments. Herman Nordbruch seconded the motion. The motion passed with the unanimous consent of the Board.

Allen Cannon considered this to be similar to a conversation that took place at last month's meeting. He agreed that the funds need to be reserved. He commented that bills go out in March while flood mitigation likely will not be assessed until May. He suggested potentially delaying billing or proceeding recognizing that funds may be needed. Ultimately, the funds can be moved from the LAD Board to the Special Service District ("SSD")for the acquisition of capital expenses that may be necessary.

Bob explained that the funds from the LAD Board pay for law enforcement, the annual subscription fee for the four flashing speed signs, software, and maintenance, which are funded from the Fire Assessment Fee. The total projected to be collected next year would be $10,860 or roughly $20 per household. Emily was concerned about consistency and failing to bill one year. She stated that the funds could be used for fire mitigation as well.

Reed McArthur liked the idea of waiting to see if the funds are needed before making a decision on the assessment. He also recommended additional officer coverage for weekends other than holidays since summers are always busy. He commented that a lot of construction is taking place and most of the speeders are construction workers, especially in the evenings from 4:00 PM to 6:00 PM. Herman explained that the holiday weekend coverage is in addition to the day-to-day patrols that take place and is not a substitute for it.

Rick commented that historically, bills have been sent out in March, and he was concerned about delaying that even by a few months. He was concerned that doing so will result in more problems collecting payment.

Emily asked if there is equipment that the Fire Department could use or that could be purchased for the community to help with fire or flood mitigation. Fire Chief, Robert Hardy, reported that the State purchased chipper shredders that the department has access to. Chainsaws and trailers, however, are available in the community. He mentioned that the department has a chainsaw, but it may wear out with significant use. He commented that there is a need for a chipper shredder, which is available through the state.

Dan Forbes stated that at the last meeting there was discussion about fixing the flashing speed sign near the Neilson's home, which required it to connect to Wi-Fi. He mentioned that he has a mobile StarLink that could be placed next to the sign to connect it.

Rob Nodine agreed with Allen and stated that they do not know what will happen in the spring. He thought it would be problematic to not make the assessment and then need the funds.

Allen suggested that they reserve the funds for potential flood mitigation. If the funds are not needed, they can be placed in reserve or not assess in future years.

There were no further public comments.

7. Motion to Close the Public Hearing.

Bob Dalley moved to CLOSE the public hearing. Herman Nordbruch seconded the motion. The motion passed with the unanimous consent of the Board.

8. Chair Resumes Public Meeting.

Bob Dalley moved to RESUME the Open Meeting. Herman Nordbruch seconded the motion. The motion passed with the unanimous consent of the Board.

Bob Dalley moved to ALLOCATE $10,000 of the 2025 cash balance set aside for the purpose of flood and fire mitigation that would be capital-related for the community on or before December 31, 2025. The normal billing process should be considered for 2026 with the same amount of allocation going toward the Local Administrative District of roughly $20 per household. Herman Nordbruch seconded the motion. The motion passed with the unanimous consent of the Board.

Bob Dalley moved that the Fund Balance Limitation become part of the budgeting process policies and procedures. Tom Nielsen seconded the motion. The motion passed with the unanimous consent of the Board.

9. Annual Board Fraud Risk Assessment Form/Report – Bob Dalley.

Bob reported that as part of the policies and State requirements for the LAD and SSD Boards, they are required to file a Fraud Risk Report with the State prior to December 31, 2025. When the policies were adopted, the report was filed late with an explanation. The State has a list of items regarding policies and practices and assigns point totals. He, Allen, Rick, and Teri have completed the form. 355 total points were allocated, which constitutes a low risk. The risk is lower than when the assessment was made earlier in the year because the policies were not adopted for the prior year. They have since been adopted.

Bob mentioned item number 3 asks if the entity has a license or a Certified Public Accountant ("CPA") serving on the board. Bob is a retired licensed CPA, which presumably resulted in some beneficial risk. Another item asks if a member of the Board has a bachelor's degree in accounting. There is also a basic separation of duties between the Clerk and Treasurer in terms of bank reconciliations. Bob stated that the questions were answered correctly to the best of his knowledge.

Bob Dalley moved that the Fraud Risk Assessment be signed by the Chair and filed with the State on or before December 31, 2025. Tom Nielsen seconded the motion. The motion passed with the unanimous consent of the Board.

Rick indicated that he would take care of filing the Fraud Risk Assessment with the State.

10. Conflict of Interest and Ethical Behavior Forms to be signed by Board Members – Bob Dalley.

Bob reminded the Board that there are also Conflict of Interest and Ethics Policies that need to be signed and submitted to the State by January 31, 2026.

11. Quarterly Bank Reconciliations Report – Bob Dalley.

Bob reported that Allen joins him as a member of the SSD Board with his financial background as a citizen. Bob does so as a member of the Board. They meet quarterly with the Clerk and Treasurer and review the bank financial statements and the reconciliation of each to the books. They reviewed the bank account for the LAD and there were no outstanding deposits or checks. To the best of his knowledge, the books and cash have been handled properly. He noted that this is one of the quarterly Fraud Assessment requirements.

Bob mentioned that his terms on both the LAD and the SSD boards will expire on December 31. He has reapplied in the event he is not reappointed, there needs to be a quarterly evaluation, and the Fraud Risk Assessment needs to be done annually.

Bob Dalley moved to APPROVE the Financial Report. Emily Neilson seconded the motion. The motion passed with the unanimous consent of the Board.

12. 2026 Tentative Budget to be presented for Board Review – Rick Peetz.

Rick presented the 2025 Tentative Budget and reviewed the changes made in this meeting as follows:

- Transfer funds in the amount of $10,800;
- Interest income increased from $700 to $1,000;
- $400 was budgeted for printing and signs;
- $3,600 for law enforcement;
- Under salaries the budget shows TBD for the Clerk and Treasurer. That amount was anticipated to increase to be commensurate with the amount of work done by each;
- $1,800 for the sign;
- $800 for QuickBooks for the year;
- $1,000 for Neighborhood Watch; and
- $1,000 for potential speed sign repair.

$10,700 was budgeted for expenses compared to an income of $11,800.

Procedural issues were discussed. It was reported that once the Tentative Budget is filed, it must be posted to the public with a public hearing and vote to take place at the December Meeting.

13. Dump Signage Follow-Up – Frank Davie.

Chair Davie received a letter from Lacey with Washington County who indicated that they had already spoken to Rick Albee regarding the dump signs. New signs were expected to be installed soon.

14. Community Watch – Tom Nielsen & Gene Phillips.

There was nothing to report.

15. Clerk Report (August & September) – Rick Peetz.

Rick presented the Clerk's Report and reported that interest was received, and payment was made for the traffic signs in the amount of $1,800.

16. Treasurer Report (October) – Teri Forbes.

Teri presented the Treasurer's Report and verified that the account has been reconciled and is in order.

Emily Neilson moved to APPROVE the Clerk and Treasurer Reports. Bob Dalley seconded the motion. The motion passed with the unanimous consent of the Board.

17. Citizen Requests - Any person wishing to bring an item not otherwise on the agenda is to bring it to the attention of the Board Chairman, Frank Davie, and the additional members of the Board by raising their hand and giving their name for the record. The Chair or Board will take no action at this time. All items will be referred to the board for follow-up and report.

Allen thanked the veterans in the community for their service.

Bob Dalley moved to ADJOURN. Tom Nielsen seconded the motion. The motion passed with the unanimous consent of the Board.

The meeting adjourned at 715 PM.

The next scheduled PVLAD meeting is scheduled for December 10, 2025.